

SENATE No. 1944

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the exemption of private pension income from taxation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Thomas Egan</i>		
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/21/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>10/6/2025</i>

SENATE No. 1944

By Mr. Crighton (by request), a petition (accompanied by bill, Senate, No. 1944) of Thomas Egan and Sean Reid for legislation to exempt private pension income from taxation. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1775 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the exemption of private pension income from taxation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Subsection B of Section 3 of Chapter 62 of the General Laws, is hereby amended by
2 adding the following subparagraph:-

3 (5) Amounts not to exceed \$2,000 received by persons under age 60 as pensions from
4 employers, the United States, the State or any subdivision, or amounts not to exceed \$12,500
5 received by persons age 60 or older as pensions from employers, the United States, the State or
6 any subdivision or as eligible retirement income.

7 For the purposes of this paragraph, "eligible retirement income" shall include
8 distributions received from qualified retirement plans defined in § 4974 of the federal Internal
9 Revenue Code ("IRC") [26 U.S.C. § 4974] or a successor provision, cash or deferred
10 arrangements described in IRC § 401(k) [26 U.S.C. § 401(k)] or a successor provision,

11 government deferred compensation plans described in IRC § 457 [26 U.S.C. § 457] or a
12 successor provision, dividends, capital gains, interest and rental income from real property less
13 deductible rental expenses. For purposes of this paragraph, eligible retirement income received
14 by spouses as joint tenants with right of survivorship or as tenants by the entirety shall be
15 deemed to have been received one-half by each.